

The Invisible Limits of Public Reason:
Stability, Tracking, and the Political Epistemology of
Justification

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Chapter 1

Introduction

Liberal democracies present themselves as regimes of justification rather than mere regimes of command. When law reaches into contested domains (religion, family life, education, speech, property, or the terms of political participation), it purports to do so on grounds that free and equal citizens can acknowledge without abandoning their deepest commitments. That aspiration is familiar. What is easier to miss is how much it presupposes about the temporal shape of politics.

Recent work on Rawlsian stability has emphasized why this temporal dimension matters now. As Weithman (2024, p. 23) notes, threats to the stability of liberal democracies are of obvious contemporary import, and Rawls's concern with stability was centrally a concern with the stability of the fundamental terms of social cooperation. Those threats are not only exogenous shocks. They also arise from internal dynamics, for example constitutional moves that recalibrate institutional power and thereby establish less democratic equilibria. (Weithman 2024, p. 24) If legitimacy is partly a matter of sustaining free cooperation over time, then political philosophy cannot treat time as a footnote.

Two time horizons are especially relevant to the burdens that stability-based legitimacy places on citizens. On a short cycle (months to a few years), crises, agenda shocks, technological change, and institutional reinterpretations can alter which considerations are salient and how they bear on familiar principles. On a long cycle (a decade or more), generational replacement, doctrinal evolution, and path-dependent institutional development can reshape the repertoire of reasons that citizens treat as politically decisive. Neither kind of drift requires that citizens

become irrational or unreasonable. The same citizens, committed to fair cooperation, can find that the justificatory terrain has shifted under their feet.

A concrete example helps fix what has to be tracked. Consider the justificatory vocabulary surrounding privacy, speech, and security. A principle like freedom of expression can be invoked to defend robust protections for protest and pamphleteering; it can also be invoked to resist content moderation by private platforms; and it can be invoked, in yet another context, to criticize state efforts to regulate algorithmic amplification. Likewise, appeals to security that once centered on physical threats may become entangled with data collection, predictive policing, or the governance of digital infrastructures. The point is not that these are novel topics, or that moral disagreement is surprising. The point is that the mapping from shared political values to concrete institutional judgments changes in ways that are hard to anticipate, easy to politicize, and costly for ordinary citizens to keep coherently in view.

Rawls's project of public reason is the canonical attempt to render legitimacy under reasonable pluralism intelligible. Its distinctive promise is not merely that citizens can endorse just institutions in the abstract, but that a constitutional order can be stably supported from within citizens' diverse comprehensive doctrines rather than held together by fear, strategic compromise, or exhaustion. Yet Rawls's own writings invite a question about whether this promise can be kept. Weithman (2025, p. 1188) argues that Rawls's treatment of stability promises help in understanding how liberal democratic institutions might reproduce themselves under non-ideal conditions, but that it faces formidable obstacles because the stability Rawls analyzes is the stability of an ideally just society and seems to depend ineliminably on the justice of that society. Rawls also came to concede that even a well-ordered society is more likely to exhibit justice pluralism than consensus on any single political conception, a concession that forces a rethinking of the stability story rather than a mere refinement of it. (Weithman 2024, p. 23)

This dissertation identifies a further obstacle that is largely invisible in the standard debates. Stability through public reason relies on what I call a *tracking requirement*: citizens must be able to retain a justificatory orientation over time, recognize which considerations are admissible within public reason, and revise their political judgments as circumstances change without treating each new context as a wholesale reset. The burden I have in mind concerns constitutional essentials and basic justice, including their interpretation and institutional realization under changing conditions. Stability also relies on an associated *landscape stability assumption*: the political environment must be stable enough that the family resemblance

among admissible reasons is not constantly disrupted by novelty, strategic adaptation, and reinterpretation. Debates about Rawlsian stability frequently slide past this assumption by treating stability as a property of an equilibrium state, even though the existence and persistence of such a state is itself contested. (Weithman 2023, pp. 198–199) If this diagnosis is right, then a familiar defense of liberal democratic coercion loses its footing precisely where disagreement is deepest.

The tracking requirement is fragile for cognitive reasons. Human agents are not transparent reason-trackers. They compress information, rely on heuristics, conserve prior commitments, and update selectively under uncertainty. In large-scale, mediated politics, citizens also rely on cues supplied by parties, media, and social networks. That reliance lowers epistemic costs, but it makes justificatory coherence harder to sustain across contexts. The landscape stability assumption is fragile for systemic reasons. Modern political orders are complex adaptive systems: rules shape behavior, behavior reshapes the environment, and the environment reshapes the meaning and salience of the reasons citizens appeal to. In such settings, stability is not simply a matter of reiterating the same values; it requires tracking how values, facts, institutions, and social meanings co-evolve.

The thesis I defend is modest in one respect and revisionary in another. I do not claim that Rawlsian principles of justice are false, or that the moral ideal of justification to free and equal citizens should be abandoned. Nor do I use cognitive limitations to redefine Rawls's normative idea of the *reasonable*. My claim concerns a specific *route to legitimacy*: stability through public reason. Rawlsian stability depends on a fit between the demands of justice and citizens' conceptions of the good, and even in *Political Liberalism* that fit is not guaranteed. (Weithman 2025, p. 1189) If stability is doing justificatory work, then constraints on what citizens can reliably do with reasons under conditions like ours are internal to the legitimacy story. The argument is therefore not that political morality must stop where psychology begins. It is that this particular legitimacy route needs either (i) a revised account of what citizen reasoning must accomplish over time, or (ii) an institutional story that carries more of the justificatory load in a democratically acceptable way.

The constructive direction I pursue takes the second route. Legitimacy should be sought in institutions that function as cognitive prosthetics: distributed, feedback-sensitive arrangements that reduce justificatory burdens without centralizing control. To block the paternalism worry, the institutional mechanisms I sketch are designed to be contestable, transparent in their filtering criteria, and polycentric rather than monopolistic. Their aim is to supplement

democratic deliberation, not to replace it.

The argument proceeds in stages. Chapter 2 reconstructs Rawlsian public reason and its link to stability in a way that makes the tracking requirement explicit. Chapter 3 clarifies the kind of feasibility test at issue and explains why it is internal to stability-based legitimacy rather than an external empirical complaint against ideal theory. Chapters 4 and 5 examine contemporary defenses and extensions of public reason and existing feasibility critiques, arguing that the tracking burden reappears even when public reason is reformulated. Chapters 6 and 7 develop the cognitive and systemic constraints in detail. Chapter 8 synthesizes those constraints and answers the strongest objections. Chapter 9 offers the constructive proposal.

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